

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 2, 2026
8:30 AM/1:30 PM

2. BRANDON BERUMEN V. ZSANENN WARD-THOMAS

PFL20200128

On November 10, 2025, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders, attorney's fees and sanctions. He filed his Income and Expense Declaration concurrently therewith.

All required documents were served by mail on Respondent on November 12, 2025. There is no Proof of Service for the Department of Child Support Services (DCSS), though they are a party to the action and the filing of an RFO necessitates service on all parties especially in instances where the request is for custody orders which may affect DCSS' decision to seek amended support orders.

Additionally, this is a post-judgment request for modification of custody orders. As such, it was required to be personally served or, if served by mail, Petitioner was required to complete and file a Declaration Regarding Address Verification – Post Judgment Request to Modify a Child Custody, Visitation, or Child Support Order. See Fam. Code § 215. There is no such declaration in the file.

On December 29, 2025, Respondent filed a letter of participation in the Safe at Home, Confidential Address program.

On January 12, 2026, Petitioner filed and served a Declaration of Brandon Berumen in Support to [sic] Recuse Mediator Norman Labat. On January 13th Petitioner filed and served a Supplemental Declaration of Brandon Berumen in Support of the Request for Order.

Respondent has not filed a Responsive Declaration to Request for Order. Nevertheless, despite the defect in service of the RFO, both parties attended Child Custody Recommending Counseling (CCRC) on December 10, 2025. The parties were unable to reach any agreements therefore a report with recommendations was prepared on March 19, 2026, it was mailed to the parties on March 20, 2026. Because both parties attended CCRC, the court finds good cause to proceed with the merits of the RFO.

On March 25th, Petitioner filed and served a Declaration of Brandon Berumen in Response to the CCRC Report and in Support of the Request for Order.

Petitioner is requesting sole legal and sole physical custody of the minor children as well as several other custody and visitation requests as set forth in his moving papers. He also requests \$2,500 in attorney's fees and costs.

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The parties are ordered to appear for the hearing.

TENTATIVE RULING #2: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.